WHMIS

WHMIS - Labels

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Important Information

Canada has aligned the Workplace Hazardous Materials Information System (WHMIS) with the Globally Harmonized System of Classification and Labelling of Chemicals (GHS).

This document discusses the WHMIS supplier requirements as regulated by federal legislation – the *Hazardous Products Act* (HPA) and the *Hazardous Products Regulations* (HPR). This document reflects the *Hazardous Products Regulations* requirements as of December 15, 2022.

Health Canada is the government body responsible for the overall WHMIS supplier-related laws. Note that WHMIS is also regulated in the workplace by the provinces, territories and federal governments (for federally regulated workplaces) under their occupational health and safety legislation. While these jurisdictions based their WHMIS regulations on the common model, small variations between jurisdictions may exist.

Suppliers and employers must use and follow the WHMIS requirements for labels and safety data sheets (SDSs) for hazardous products sold, distributed, or imported into Canada.

This document discusses the WHMIS supplier and workplace labelling requirements.

Please refer to the following other OSH Answers documents for information on:

- WHMIS – General
- WHMIS – Pictograms
- WHMIS – Hazard Classes and Categories
- WHMIS – Safety Data Sheets (SDSs)
- WHMIS – Education and Training
- WHMIS – WHMIS Program
- WHMIS – Glossary
- WHMIS – Confidential Business Information (CBI)
- WHMIS – Variances
- WHMIS – Laboratories
- WHMIS - Information for Suppliers and Importers
- WHMIS - Legislation

What products require a WHMIS label?

In Canada, WHMIS legislation requires that products used in the workplace that meet the criteria to be classified as hazardous products be labelled.

Labels are the first alert to the user about the major hazards associated with that product, and outline the basic precautions or safety steps that should be taken.

Who is responsible for labelling?

In most cases, suppliers are responsible for labelling the hazardous products they provide to customers. Note: Labels must be affixed to, printed or written on, or attached to the hazardous product or the container and remain legible. Providing a compliant WHMIS label along with the shipping papers would not be considered to be in compliance (that is, this scenario would not meet the requirements of the *Hazardous Products Regulations*).

Employers are responsible for making sure that hazardous products that come into the workplace are labelled and for preparing and applying a workplace label when appropriate.

Are there different types of labels?

Yes. There are two main types of WHMIS labels: supplier labels and workplace labels.

Suppliers of hazardous products are required to apply a label that meets the requirements of the *Hazardous Products Regulations*. If the hazardous product is always used in the container with the supplier label, no other label is required.

A workplace label is required when:

- a hazardous product is produced (made) at the workplace and used in that workplace,
- a hazardous product is decanted (e.g., transferred or poured) into another container, or
- a supplier label becomes lost or illegible (unreadable).

There are two situations when a workplace label is not necessary. When a hazardous product is:

- poured into a container and it is going to be used immediately, or
- "under the control of the person who decanted it". For example, when the person who poured the product into another container will be the only person who will use it, and the product will be used during one shift, a full workplace label may not be required. **However**, the container must still be identified with the product identifier (name).

If the product is not used right away or if more than one person will be in control of the product, a full workplace label is required. Note that a company may have specific rules about labelling containers that are above or exceed the WHMIS requirements.

NOTE that requirements for workplace labels are regulated by your local provincial or territorial jurisdiction. Check with your jurisdiction for more information.

What information is required on a supplier label?

Supplier labels must be in both official languages of Canada (English and French). They may be bilingual (as one label), or available as two labels (one each in English and French). Providing a supplier label in just English or French would not meet the requirements of the *Hazardous Products Regulations*.

The supplier label must include the following information:

1. **Product identifier** – the brand name, chemical name, common name, generic name or trade name of the hazardous product.
2. **Initial supplier identifier** – the name, address and telephone number of either the Canadian manufacturer or the Canadian importer*.
3. **Pictogram(s)** – hazard symbol within a red "square set on one of its points".

4. **Signal word** – a word used to alert the reader to a potential hazard and to indicate the severity of the hazard.
5. **Hazard statement(s)** – standardized phrases which describe the nature of the hazard posed by a hazardous product.
6. **Precautionary statement(s)** – standardized phrases that describe measures to be taken to minimize or prevent adverse effects resulting from exposure to a hazardous product or resulting from improper handling or storage of a hazardous product.

Supplemental label information – Some supplemental label information is required based on the classification of the product. For example, the label for a mixture containing ingredients with unknown toxicity in amounts higher than or equal to 1% must include a statement indicating the percent of the ingredient or ingredients with unknown toxicity. Labels may also include supplementary information about precautionary actions, hazards not yet included in the GHS, physical state, or route of exposure. This information must not contradict or detract from the standardized information.

* Initial supplier identifier – There are two exceptions to this requirement:

- In a situation where a hazardous product is being sold by a distributor, the distributor may replace the name, address, and telephone number of the initial supplier with their own contact information.
- In a situation where an importer imports a hazardous product for use in their own workplace in Canada (that is, the importer is not selling the hazardous product), the importer may retain the name, address, and telephone number of the foreign supplier on the labelinstead of replacing it with their own contact information.

What is a signal word?

A signal word is a prompt that alerts you about the degree or level of hazard of the product. There are only two signal words used: "**Danger**" or "**Warning**". "Danger" is used for high-risk hazards, while "Warning" is used for less severe hazards. If a signal word is assigned to a hazard class and category, it must be shown on the label and listed in section 2 (Hazards Identification) of the safety data sheet (SDS).

Some hazard classes or categories do not have a signal word assigned to them.

What is a hazard statement?

Each hazard class and category has an assigned "hazard statement". Hazard statements are brief, standardized sentences that tell you more about the exact hazard of the product. The statements are short, but they describe the most significant hazards of the product.

Examples of hazard statements are:

- Extremely flammable gas.
- Contains gas under pressure; may explode if heated.
- Fatal if inhaled.
- Causes eye irritation.
- May cause cancer.

The wording of the hazard statement helps to describe the degree of the hazard. For example, "May cause cancer" is more hazardous than "Suspected of causing cancer".

What is a precautionary statement?

Precautionary statements provide advice on how to minimize or prevent adverse effects resulting from exposure to a hazardous product or from improper storage or handling of a hazardous product. These statements can include instructions about storage, handling, first aid, personal protective equipment, and emergency measures. Like the hazard statements, the wording of precautionary statements is standardized and harmonized.

There are five types of precautionary statements:

- General.
- Prevention.
- Response (including first aid).
- Storage.
- Disposal.

Examples of precautionary statements are:

- Keep the container tightly closed.
- Wear protective gloves/protective clothing/eye protection/face protection.
- If exposed or concerned: Get medical advice/attention.
- Fight fire remotely due to the risk of explosion.
- Protect from sunlight.

Precautionary statements will be consistent with the degree of the hazard associated with the product.

How do suppliers use the GHS guidance materials when creating labels and SDSs?

The use of the slash (/) or the dots (...) are intended as instructions to the supplier to help them prepare the label and SDS.

For example, the guidance material from GHS lists the following precautionary statement "Wear protective gloves/protective clothing/eye protection/face protection."

The slash (/) means the supplier is to specify the appropriate type of equipment based on their knowledge of the product and how it is used. So, for example, this statement could appear as:

- Wear protective gloves and eye protection.

Or

- Wear protective gloves.

Or

- Wear protective gloves, protective clothing, eye protection, and face protection.

Another example is "Do not subject to grinding/shock/friction/…". In this case, the supplier is to specify the applicable rough handling circumstances to avoid (grinding, shock and/or friction), and the dots (...) mean they are to consider other types of rough handling that should be mentioned.

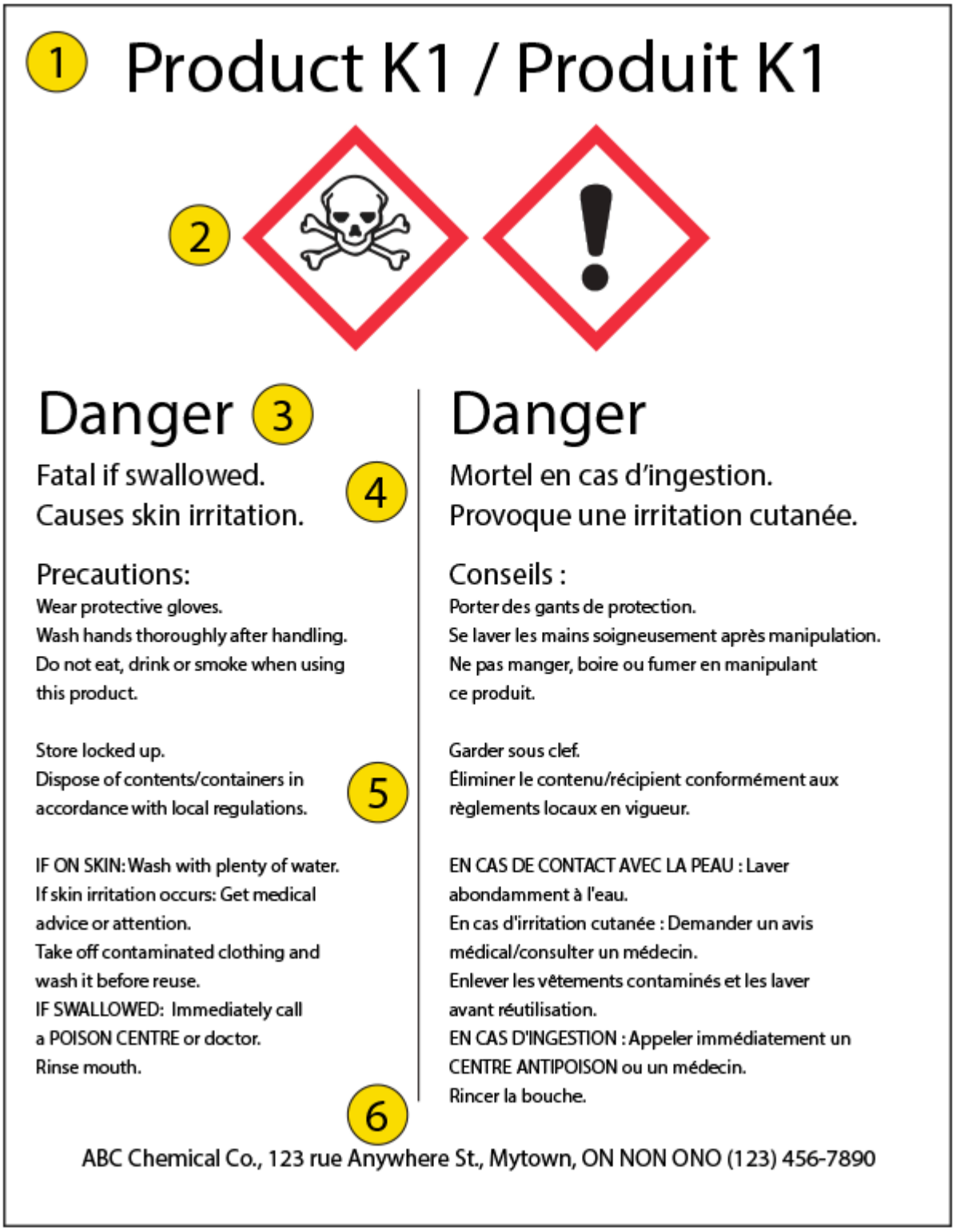
What does a supplier label look like?

There is no set format for a supplier label. As mentioned, labels must be in English and French. They may be bilingual (as one label) or be presented as two labels (one each in English and French).

Labels will require the following:

- the pictogram, signal word, and hazard statement to be grouped together,
- to be clearly and prominently displayed on the container,
- to be easy to read (e.g., you can see it easily without using any item except corrective glasses), and
- to be in contrast with other information on the product or container.

An example of a bilingual label is shown below:



1. **Product Identifier**
   The product name is exactly as it appears on the container and on the safety data sheet.
2. **Hazard Pictograms**
   Hazard pictograms as determined by the hazard classification of the product. In some cases, no pictogram is required.
   (For the list of pictograms, see the OSH Answers WHMIS – Pictograms.)

3. **Signal Word**
   “Danger” or “Warning” is used to emphasize hazards and indicate the severity of the hazard.
4. **Hazard Statements**
   Brief standardized statements of all hazards based on the hazard classification of the product.
5. **Precautionary Statements**
   These statements describe recommended measures to minimize or prevent adverse effects from exposure to the product, including protective equipment and emergency measures. First aid is included in precautionary information.
6. **Supplier Identifier**
   The company which made, packaged, sold or imported the product, and is responsible for the label and safety data sheet.

Notes:

- The hatched border that was required under WHMIS 1988 is no longer required. However, it is not forbidden to use the hatched border, so you may see it on a current WHMIS label.
- Hazardous ingredients: Disclosure of hazardous ingredients on a label is no longer required under WHMIS. However, the supplier may choose to include them on the label. For a hazardous product that is a substance, the chemical name of the substance must be listed on the safety data sheet. For a hazardous product that is a mixture, the chemical names of the hazardous ingredients that present health hazards must be listed on the safety data sheet.

When does a supplier label have to be updated?

A label is required to be updated when the supplier becomes aware of any "significant new data". According to the regulation, the definition of significant new data is:

> "New data regarding the hazard presented by a hazardous product that changes its classification in a category or subcategory of a hazard class, or result in its classification in another hazard class, or change the ways to protect against the hazard presented by the hazardous product." (Source: Hazardous Products Regulations, Section 5.12 (1))

Labels are required to be updated within 180 days of the supplier being aware of the new information. If you purchase a product within this 180-day time period, the supplier must provide a document that provides the changes to the label that are required and the date the data became available.

If employers receive information about new significant data from a supplier, the employer must use this information to update all of the relevant supplier labels.

What information is required on a workplace label?

In general, a workplace label requires the following information:

- Product name (matching the SDS product name).
- Safe handling precautions may include pictograms or other supplier label information.
- A reference to the SDS (if available).

Employers must make sure the correct labels are used. Workplace label requirements fall under your provincial or territorial jurisdiction, or under the Canada Labour Code if you work in a federally regulated workplace. Confirm the exact requirements with your jurisdiction.

Are there any other types of labels allowed?

In specific cases, yes. Products can also be identified witha mark, sign, stamp, sticker, seal, ticket, tag, or wrapper. It can be attached, imprinted, stencilled, or embossed on the hazardous product or its container. Workers must be trained to identify these alternative systems if they are used in the workplace.

Under WHMIS, Variations on the supplier label apply for specific situations such as:

- **Bulk shipments** – A labelling exemption exists for products sold without packaging.
- **100 mL or less** – Exempt only from the requirement to have precautionary or hazard statements on the label.
- **3mL or less** – Where the label will interfere with the normal use of the product, the product would be required to have a label that is durable and legible for transport and storage but may be removable during use.

A fold-out or accordion-style label is allowed if there is not enough space on the product to provide a label that meets the legibility requirements of the *Hazardous Products Regulations.* Note that:

- the required pictogram(s), signal word and hazard statement(s) must be grouped together on the label,

- the label must be clearly and prominently displayed on a surface that is visible under normal conditions of use, and
- the label must, under normal conditions of transport and use, remain affixed to, printed or written on, or attached to the product or its container and remain legible.

How should hazardous products packaged in multiple containers be labelled?

If a hazardous product is packaged in more than one container, each container (e.g., the outer container, the inner container, and any intermediate container, if applicable) must be fully labelled. There are two exemptions that may apply:

1. The outer container does not require a WHMIS label if the label on the inner container is visible and legible through the outer container under normal conditions of storage and handling, or
2. The outer container has a label that meets the requirements set out in the *Transportation of Dangerous Goods Regulations*. Note that this exemption does not apply if the outer container is the only container.

Note that other exemptions may apply, such as the small capacity container (less than or equal to 100 mL).

As a worker, what should I do when using a hazardous product?

- Always check to see if there is a label on the product before you use it.
- Read, understand and follow the instructions on the label and SDS. Follow any additional education, instructions, and training as provided by your employer.
- Ask your supervisor if you are not sure about how to use or store the product.
- Ask for a new label when the old one cannot be seen or read properly.
- Do not use a product that is not labelled or if the label is unreadable. Ask your supervisor for help (e.g., to replace the label).

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